

Cross-Complainants' argument that the statute of limitations did not begin to run until August 25, 2022, when Desert Hydroponics obtained formal title to the property, is incorrect as a matter of law. Both claims for ejectment and claims for wrongful possession are based upon possessory interests in real property, not title. (See *Craviotto v. All Persons* (1928) 93 Cal.App. 346, 352 ("Generally speaking, the action of ejectment is merely a possessory action, and is confined to those cases where the claimant has a possessory title; that is to say, a right of entry upon the land."); *Lightner Mining Co. v. Lane* (1911) 161 Cal. 689, 694-95 ("It is a well-settled proposition that the proper party plaintiff in an action for trespass to real property is the person in actual possession. No averment of title in plaintiff is necessary."). Accordingly, the date upon which title actually passed to Desert Hydroponics is irrelevant for purposes of calculating the statute of limitations, and the statute of limitations for these possessory claims began running in 2005.

2nd Accounting, 3rd Unjust Enrichment and 4th Declaratory Relief Causes of Action:

Cross-Complainants contend that these claims raise factual and equitable issues unsuitable for demurrer. However, these claims (which are alleged by Desert Hydroponics) are dependent upon a finding that Desert Hydroponics was authorized to bring them in the first place. As discussed, this is not the case here.

Cross-Defendants' Requests for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Second Amended Cross-Complaint and attached exhibits CVPS 2402052
2. This Court's ruling on 2.24.26 regarding the demurrer to the Second Amended Cross-Complaint CVPS 2402052

Cross-Defendants Bertha Wong and Irene Weingarten Demurrer via Joinder; as to the 2nd, 3rd and 4th Causes of Action, the Demurrer is SUSTAINED without leave to amend.

Cross-Defendants Debbie Chamberlain, Rodney Chamberlain and Wong Farms, LLC Demurrer as to the 2nd, 3rd, 4th, 5th and 6th Causes of Action, SUSTAINED, without leave to amend.

*The court notes that the motion by Cross-Defendants Debbie and Rodney Chamberlain and Wong Farms LLC was a demurrer for the 2nd-6th causes of action and ruled on those causes, despite the proposed order only requesting the 2nd-5th causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	DEMURRER ON 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS BERTHA WONG AND IRENE WEINGARTEN

Tentative Ruling:

Statute of Limitations:

Paragraph 18 of The Cross-Complaint and Paragraph 19 of the First Amended Cross-Complaint and the Second Amended Cross-Complaint state the same allegation:

“Having not visited the farm property for so many years, it was not until 2019 when BRUCE AUERBACH took the occasion to drive out to the property to speak with Plaintiff BERTHA WONG, at the farmhouse. When he arrived, he was completely shocked by what he saw because, not only was the farm not dormant, BRUCE AUERBACH learned that BERTHA WONG had vacated the farmhouse about 5 years before, because her daughter Debbie Chamberlain, husband Rodney Chamberlain and her family were living in the farmhouse, rent free, and BERTHA WONG was living elsewhere.”

Paragraph 20 of the Third Amended Cross-Complaint the language varies slightly, but is essentially and materially the same:

“Having not visited the farm property for many years, it was not until 2019 when BRUCE AUERBACH took the occasion to drive out the property to speak with Plaintiff BERTHA WONG, at the farmhouse. When he arrived, he was shocked by what he saw because not only was the farmhouse dormant, he learned that BERTHA WONG had vacated the farmhouse about 5 years ago, because her daughter DEBBIE CHAMBERLAIN, husband RODNEY CHAMBERLAIN were living in the farmhouse, rent free, and BERTHA WONG was living elsewhere.”

The Statute of Limitations for breach of fiduciary duty is three or four years, depending on whether the breach is fraudulent or nonfraudulent. (*American Master Lease, LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1479). Regardless of Cross-Complainant’s current or future theory, their claim for breach of fiduciary duty is time-barred. Bruce Auerbach brought the first cause of action for breach of fiduciary duty as an individual against Cross-Defendants. The entire alleged basis of his claim for breach of fiduciary duty (Wong and Weingarten allowing the Chamberlains to possess and operate the farm while precluding DESERT HYDROPONICS from receiving any income or revenue from such use) was laid bare to him when he visited the subject property in 2019 and was “shocked” by what he saw. Even if Bruce Auerbach visited the property on December 31, 2019, he did not file his original claim for breach of fiduciary duty until December 16, 2024, the date of the filing of the original cross-complaint, over 4 years and 11 months beyond the last possible date he became aware of his claim for breach of fiduciary duty.

New allegations of acquisition of standing:

In the Third Amended Cross-Complaint, Cross-Complainants added ¶25 which states:

“Now that DESERT HYDROPONICS LP legally owns the Property as of August 25, 2022, it has standing to bring the various causes of action formally accruing as of that date against the various Cross-Defendants to recover damages for their wrongful conduct concerning the Property, including but not limited to operating the farm without authority, consent, or accounting for revenues generated therefrom, including residing in the farmhouse rent free without authority or consent, as they have no right, title to or interest therein.”

As noted by Cross-Defendants, this new allegation is intended to be applicable to individual defendant Bruce Auerbach's 1st cause of action for breach of fiduciary duty, as that cause of action now alleges in ¶32 that a breach of fiduciary duty has occurred "since August 25, 2022."

In *Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 379, the trial court sustained a demurrer to a second amended complaint and plaintiff appealed. The Court of Appeal held, in relevant part, that properly disregarded allegations in the second amended complaint that the accident occurred on the premises of a supermarket, rather than in a public street, the amendment was made solely for purposes of avoiding a demurrer. The Court discussed an exception to the general rule that a court must assume the truth of factual allegations of the complaint where a party files an amended complaint and seeks to avoid the defects of a prior complaint by omitting facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings. *Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 384-385. In these circumstances, the policy against sham pleading permits the court to take judicial notice of the prior pleadings and requires the pleader explain the inconsistency. (*Id.*) If he fails to do so, the court may disregard the inconsistent allegations and read into the complaint the allegations of the superseded complaint. (*Id.*)

In the present matter, individual Bruce Auerbach did not explain how he lacked standing to bring a claim for breach of fiduciary duty against Cross-Defendants prior to August 25, 2022. Paragraph 12 of the Third Amended Cross-Complaint alleges that Bruce Auerbach and Cross-Defendants were all partners in Desert Hydroponics since 1983. Paragraph 30 alleges that as partners, Cross-Defendants owed him a duty of loyalty, and paragraph 32 of the Cross-Complaint alleges that Cross-Defendants breached that duty of loyalty by allowing Debbie Chamberlain and Rodney Chamberlain to possess and operate the farm on the Property without Desert Hydroponics LP receiving any income or revenue from that use.

The Third Amended Cross-Complaint further alleges that legal title to the property suffered from a conveyancing error that contained an erroneous legal description that was subsequently cleared up by a quiet title action judgment on August 25, 2022. (Third Amended Cross-Complaint, ¶ 23.) The Third Amended Cross-Complaint is devoid of any allegations that Desert Hydroponics LP lacked equitable title to the Property at any time, or that Bruce Auerbach, as an alleged partner in Desert Hydroponics, had no rights in the Property until August 25, 2022, or that the clearing up of the conveyancing error containing a legal description was necessary to grant Auerbach standing to bring his action for breach of fiduciary duty against Defendants. The newly inserted Paragraph 25 in the Third Amended Cross-Complaint, inserting the acquisition of standing by Desert Hydroponics on August 25, 2022 as a result of the judgment in Riverside County Case No. CVPS2105040, is a sham pleading designed to cure the fact that Bruce Auerbach discovered the facts underlying his claim for breach of fiduciary when he visited the Property and was "shocked by what he saw" in 2019.

As noted by Cross-Defendants, the Complaint in Riverside County Case No. CVPS 2105040, brought by Bruce Auerbach as a general partner of Desert Hydroponics, alleges throughout that Desert Hydroponics, LP is the rightful owner of the Property. In ¶36, it is alleged:

"Plaintiff is informed, believes, and thereon alleges that incorrect recording on February 10, 1975, was in direct contradiction to what the parties to the Partnership Agreement intended, was in complete contradiction to how the Partnership Agreement

operated after execution of the Partnership Agreement, and that but for the Incorrect Legal Description the Corp. Grant Deed would have conveyed the true and correct lot, specifically the Property, to Plaintiff.”

Here, in present Third Amended Cross-Complaint, there is nothing requiring the correction of title to the property to imbue Bruce Auerbach with formerly missing standing to bring the first cause of action for breach of fiduciary duty.

Capacity of Bertha Wong:

The capacity of Bertha Wong is not relevant to the present demurrer or motion to strike. The defect(s) at issue in these motions are on the face of the third amended cross-complaint. Bertha Wong is not submitting declarations, testifying or otherwise submitting evidence at this hearing.

Cross-Defendants’ Requests for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Cross-Complaint CVPS 2402052
2. First Amended Cross-Complaint CVPS 2402052
3. Second Amended Cross-Complaint CVPS 2402052
3. Third Amended Cross-Complaint CVPS 2402052
4. This Court’s ruling on 2.24.26 regarding the demurrer to the Second Amended Cross-Complaint CVPS 2402052
5. Verified Complaint from CVPS 2105040

Cross-Defendants Bertha Wong and Irene Weingarten Demurrer to the 1st Cause of Action of the Third Amended Cross-Complaint SUSTAINED without leave to amend.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	MOTION TO STRIKE 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS BERTHA WONG AND IRENE WEINGARTEN

Tentative Ruling: No tentative ruling. Motion is MOOT in light of the court’s ruling as to the demurrers of Cross-Defendants Bertha Wong and Irene Weingarten.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2405849	HOLMES VS HERRIN	MOTION TO DETERMINE GOOD FAITH SETTLEMENT ON COMPLAINT OF DONNA HOLMES BY AVONDALE GOLF CLUB

Tentative Ruling: No tentative ruling. A hearing shall be conducted.